JDF 612	**Motion to Seal Conviction Records** District or County Court Conviction

A. Court

Type: (ex: County or District) District Court

Colorado County: Denver

Court Address: 1437 Bannock Street, Room 256, Denver, CO 80202

This box is for court use only.

B. Parties to the Case

Plaintiff: People of the State of Colorado

vs.

Defendant: Marion T. Ellsworth

C. Case Details

Number: 2023CR004182

Division/Courtroom: Division 12 / Courtroom 5H

1. Background

I submit this motion to seal conviction records under C.R.S. §§ 24-72-703 and 706 or 707.

2. My Information *(the Defendant)*

Date of Birth: 1988-04-17

Mailing Address: 418 Sycamore Ridge Road

City, State, & Zip: Denver, CO 80202

Phone: 555-0142

Email: marion.ellsworth@example.com

Do you need an interpreter? (●) No ( ) Yes, in *(language)*

I want to attend court events: (●) In-person ( ) Virtually *(by phone or web video)*

To switch your choice: Use form *JDF 76 – General Motion*. File at least 48 hours *before an event*.

3. Records to be Sealed

I request that the following conviction records be sealed:

- [✔] District or County Court — Case Number: 2023CR004182
- [✔] Prosecuting Attorney
- [✔] Sheriff's Department
  Mailing Address: 10500 East Smith Road, Denver, CO 80239
- [✔] Colorado Bureau of Investigation ***(Required)***
  ATTN Identification-Seals, 690 Kipling St., STE 3000, Lakewood, CO 80215

☑ Law Enforcement: (Agency Name) Denver Police Department

Agency Mailing Address: 1331 Cherokee Street, Denver, CO 80204

Agency Case Number: DPD-2021-0044190

☐ Law Enforcement: (Agency Name)

Agency Mailing Address:

Agency Case Number:

☐ Other: (Name)

Mailing Address:

☐ Other: (Name)

Mailing Address:

4. Offense Information

I was convicted of these offenses in this case:

☐ Petty Offense(s) of

☑ Misdemeanor Offense(s) of Criminal trespass, second degree

☐ Felony Offense(s) of

Date Sentenced: 2021-11-08

Probation/Parole Supervision Termination Date: 2023-05-19

a) Drug Offenses

Were any of these drug offenses committed before October 1, 2013?

◯ Yes ◉ No

Note: The court determines the eligibility of drug offenses (committed before October 1, 2013) by the offense's classification at the time of sealing.

b) Victim of Human Trafficking

Were you a victim of human trafficking and trafficked for the offense you committed?

◉ No

◯ Yes

Eligibility under C.R.S. § 24-72-707

5. Eligibility

a) Convictions Not Eligible

Note: These are not eligible for sealing under C.R.S. § 24-72-706.

- When the only charges in a case are:
  - Class 1 or Class 2 misdemeanor traffic offenses
  - Class A or Class B traffic infractions.
- A conviction for a violation of C.R.S. § 42-4-1301(1) or (2);
- A conviction for an offense for which the underlying basis involved unlawful sexual behavior as defined in C.R.S. § 16-22-102(9);
- A conviction for a violation of C.R.S. § 18-6-401;
- A conviction that is subject to one or more of the following provisions:
- Sentences for a crime involving extraordinary aggravating circumstances pursuant to C.R.S. § 18-1.3-401(8);
- A sentence for an extraordinary risk crime pursuant to C.R.S. § 18-1.3-401(10);
- Sentencing for a crime involving a pregnant victim pursuant to C.R.S. § 18-1.3-401(13);
- Sentencing for a crime pertaining to a special offender pursuant to C.R.S. § 18-18-407;
- Sentencing for a criminal conviction for which the underlying factual basis involves domestic violence as defined in C.R.S. § 18-6-800.3;
- Sentencing for a criminal conviction for a sexual offense pursuant to C.R.S. 18-3-401 through 418;
- Sentencing for any crime of violence pursuant to C.R.S. § 18-1.3-406;
- Sentencing for a felony crime enumerated in the Victim's Rights Act, C.R.S. § 24-4.1-302(1);
- Sentencing for a felony offense in violation of C.R.S. § 18-9-202;
- Sentencing for an offense classified as a class 1 or 2 felony or a level 1 drug felony pursuant to any section of Title 18 of the Colorado Revised Statutes;
- Sentencing for an offense classified as a class 3 felony pursuant to any section of title 18, except for marijuana cultivation under C.R.S. § 18-18-106(8)(a)(II)(B) as it existed prior to July 1, 1992; C.R.S. § 18-18-406(8)(a)(II)(B) as it existed prior to August 11, 2010; or C.R.S. § 18-18-406(6)(a)(II)(B) as it existed prior to October 1, 2013;
- Sentencing for an offense in violation of C.R.S. §§ 18-6-101 through 105;
- Sentencing for an offense in violation of: C.R.S. §§ 18-3.5-103(4) through (9); 18-5-902(1); or 18-7-203.

b) My Eligibility

I qualify to have my conviction records sealed because my conviction:

- (●) Is eligible for sealing under C.R.S. §§ 24-72-706 or 707.
- ( ) A misdemeanor offense that is not eligible for sealing under C.R.S. § 24-72-706.

  Check one:

  - ( ) The **district attorney consents** to the sealing.

◯ I **request a hearing** to determine if the district attorney consents to the sealing.

◯ The **district attorney does not consent** to the sealing.

If the District Attorney does not consent (now or at the hearing), you must show by clear and convincing evidence that:

- the need for sealing the record is significant and substantial,
- the passage of time is such that you are no longer a threat to public safety, and
- the public disclosure of the record is no longer necessary to protect or inform the public.

6. Case Process

a) Automatic Sealing

Do you believe the Court should have automatically sealed this case under C.R.S. § 13-3-117?

◯ Yes ◉ No

b) Appeals

Was this case appealed?

◯ Yes* ◉ No

*** If yes**, please provide the following information:

Appeal Case Number:

Appellate Court:

Result: Date:

C) Restitution

Do you still owe restitution?

○ Yes ◉ No

7. Criminal Record

Is a verified copy of your criminal history record (dated within the last 20 days) attached?

◉ Yes ○ No*

*** If not,** a copy must be filed within ten days of this Petition.

8. Harm or Adverse Consequences

For convictions other than petty offenses or petty drug offenses:

You must show that the harm to your privacy or the danger of unwarranted, adverse consequences outweighs the public interest in retaining the records.

The record has cost me two tenancies and the professional licence I trained for. I have had no further contact with the criminal justice system in the five years since the sentence ended.

9. Certificate of Service

On *(enter service date)* 2026-08-12

I certify that I sent a copy of this document to the prosecuting attorney by: *(select one)*

- ○ Colorado Courts E-Filing. *(only available to lawyers)*
- ◉ Regular Mail, addressed to: *(name)* Office of the District Attorney, Second Judicial District
  Full address: 201 West Colfax Avenue, Denver, CO 80202
- ○ Other: *(explain)*

10. Sign & Date

Print Your Name: Marion T. Ellsworth

Signature:

Date:

Counsel Signature: *(if any)*